

OREGON STATE HOSPITAL

POLICIES AND PROCEDURES

SECTION 8: Safety, Security, Emergency Management

POLICY: 8.014

SUBJECT: Room, Unit, Treatment Mall Searches

**POINT
PERSON: SAFETY & SECURITY DIRECTOR**

**APPROVED: DOLORES MATTEUCCI
SUPERINTENDENT**

DATE: March 20, 2019

I. POLICY

- A. Oregon State Hospital (OSH) will maintain a safe and secure treatment environment by implementing guidelines for unannounced and scheduled searches of patient rooms, units, and treatment malls. All searches will be a collaborative effort between Security, other health care personnel (HCP), and patients. This policy does not apply to environmental checks or other related processes directed by Nursing Services protocols.
- B. A search may only be conducted if authorized by the appropriate program director or treatment mall manager. If the program director is unable to be reached to authorize the search, the Safety and Security Director may authorize the search.
- C. An unannounced search may be conducted as needed in response to reasonable cause to suspect presence of contraband, prohibited item(s), missing item(s), or for other identified safety, security, or treatment risks.
- D. An unannounced search of each unit and treatment mall will be conducted at least annually by the Safety and Security Department to locate potential contraband, prohibited items, and safety hazards.
- E. Security must notify the relevant program director and treatment mall manager prior to a search being conducted.
- F. Before a patient's room is searched, the patient must be informed of the search. The patient must be given opportunity to monitor the room search process.
- G. Common areas may be searched without patients being present.
- H. HCP must follow Procedures A, "Room Search Process," to conduct a room search. At least two HCP must be present during any room search.
- I. HCP must follow Procedures B, "Unit Search Process," to conduct a unit search.

- J. HCP must follow Procedures C, "Treatment Mall Search Process," to conduct a treatment mall search.
- K. If a personal search of a patient is considered to be necessary during a room, unit, or treatment mall search, HCP must follow OSH Policy and Procedures 8.041, "Personal Searches".
- L. Found contraband or prohibited items must be handled in accordance with the procedures in OSH Policies and Procedures 8.019, "Staff Response to Alleged Criminal Acts and Contraband"; 8.037, "Patient Property and Valuables: Handling and Storage"; 8.044, "Contraband and Prohibited Items"; and Oregon Administrative Rule (OAR) 309-108-0015.
- M. Upon authorization from the Superintendent, the Safety and Security Director may enlist assistance from the Department of Corrections Search Team.
- N. A HCP who fails to comply with this policy or related procedures may be subject to disciplinary action, up to and including dismissal.

II. DEFINITIONS

- A. "Chain of custody" means an unbroken, documented trail of accountability that proves the physical security, including movement and location, of an item.
- B. "Contraband" has the same definition as that in OSH Policy and Procedure 8.044, "Contraband and Prohibited Items."
- C. "Health care personnel (HCP)" for the purposes of this policy means the population of health care workers working in the OSH healthcare setting. HCP might include, but is not limited to: physicians, nurses, nursing assistants, therapists, technicians, dental personnel, pharmacists, laboratory personnel, students and volunteers, trainees, contractual staff not employed by the facility, and persons not directly involved in patient care (e.g., clerical, dietary, housekeeping, maintenance).
- D. "Prohibited items" has the same meaning as that in OSH Policy and Procedure 8.044, "Contraband and Prohibited Items".
- E. "Reasonable cause" means a person has knowledge, notice of facts or circumstances which would lead a person of ordinary care and prudence to have strong suspicion.

III. PROCEDURES

- Procedures A Room Search
- Procedures B Unit Search
- Procedures C Treatment Mall Search

IV. FORMS

Search Report Form S020-T3

Search Supplement Form S020-T4

V. REFERENCES

42 CFR §482.13(c).

Oregon Administrative Rules §§ 309-108-000 — 309-108-0020.

Oregon Revised Statute § 162.135.

Oregon Revised Statute § 162.185.

Oregon State Hospital Policy and Procedure Manual. *Contraband and prohibited items*, 8.044. Author.

Oregon State Hospital Policy and Procedure Manual. *Incident reporting*, 1.003. Author.

Oregon State Hospital Policy and Procedure Manual. *Patient property and valuables*, 8.037. Author.

Oregon State Hospital Policy and Procedure Manual. *Patient rights*, 7.005. Author.

Oregon State Hospital Policy and Procedure Manual. *Personal searches*, 8.041. Author.

Oregon State Hospital Policy and Procedure Manual. *Staff response to alleged criminal acts and contraband*, 8.019. Author.

Responsible Person/Group	Procedures
Nurse manager (or designee)	When a room search is deemed necessary in accordance with OSH Policy 8.014: 1. Request authorization from the program director for patient room search. Provide the following information to the program director: a. reasonable cause to suspect the presence of contraband, prohibited items, or drugs; or b. the security or safety risk that poses a danger to patients or others. 2. Determine if additional staff will be necessary for the search. 3. Contact Security manager or designee to coordinate the search, if necessary. 4. Designate a HCP to lock the patient's room until the search is conducted. 5. Establish a chain of custody for contraband or prohibited items located during room search. 6. Communicate results to the program director.
Program director	1. Review search request. 2. Authorize the search if deemed necessary. 3. Review search results.
Security Director or manager	1. Coordinate Security assistance. 2. Develop plan with HCP about scope of search, search plan, and possible risks. 3. Assign or lead a Security team to assist with room search. 4. Review and assist with documentation of chain of custody, evidence handling, and incident reports from Security staff. 5. If contraband or prohibited items are found, follow OSH Policies and Procedures 8.019, "Staff Response to Alleged Criminal Acts and Contraband"; 8.037, "Patient Property and Valuables: Handling and Storage"; 8.044, "Contraband and Prohibited Items"; and Oregon Administrative Rule (OAR) 309-108-0015.
Security staff	1. Complete search according to established plan. 2. Complete incident reports as necessary per OSH Policy and Procedure 1.003, "Incident Reporting".

MHT, nurse, or MHST	1. Coordinate resources to assist with the unannounced search with the on-shift Security manager. 2. Inform the patient of the search and offer the patient opportunity to observe the search. 3. Conduct a security check of the patient as outlined in OSH Policy and Procedure, 8.041, "Personal Searches." 4. Allow the patient to be present for the room search by: a. Placing a chair about two feet from the patient's room door to sit on or stand by. The patient may not enter the room until the search is complete. b. Search the patient's property inside of the room. c. Return the patient's property to original state or location. 5. Remove any prohibited items, contraband, or missing equipment from patient's room. 6. Document the reason for the search and any outcome of concern in the patient's medical record. If the patient chooses not to be present for the search, document the choice in the medical record. 7. Return found items to unit HCP. Follow OSH Policy and Procedure 8.044, "Contraband and Prohibited Items" when handling prohibited items.
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Responsible Person/Group	Procedures
Nurse manager (or designee)	When a unit search is deemed necessary in accordance with OSH Policy 8.014: 1. Request authorization from the program director for the unit search. Provide the following information to the program director: a. reasonable cause to suspect the presence of contraband, prohibited items, or drugs; or b. the security or safety risk that poses a danger to patients or others. 2. Determine if additional staff will be necessary for the search. 3. Contact Security manager or designee to coordinate the search, if necessary. 4. Designate a HCP to lock patient rooms until the search is conducted. 5. Assist with the common area and patient rooms search. Follow Procedures A, "Room Search". 6. Establish a chain of custody for contraband or prohibited items located during the search. 7. Communicate results to the program director.
Program director	1. Review search request. 2. Authorize search if deemed necessary. 3. Review search results.
Security Director or manager	1. Arrange scheduled searches by: a. developing a search schedule, b. coordinating Security staff, and c. notifying the program director prior to the search. 2. Coordinate Security assistance with unit HCP. 3. Develop plan with HCP and program director about scope of search, search plan, and possible risks. 4. Assign or lead a Security team to assist with search. 5. If contraband or prohibited items are found, follow OSH Policies and Procedures 8.019, "Staff Response to Alleged Criminal Acts and Contraband"; 8.037, "Patient Property and Valuables: Handling and Storage"; 8.044, "Contraband and Prohibited Items"; and Oregon Administrative Rule (OAR) 309-108-0015. 6. Document the search. 7. Review and assist with documentation of chain of custody, evidence handling, and incident reports from Security staff.

	8. Provide a written report and risk assessment to the program director.
Security staff	1. Complete search according to established plan. 2. Complete incident reports as necessary per OSH Policy and Procedure 1.003, "Incident Reporting".
MHT, nurse, or MHST	1. Verify no patients are inside of rooms and lock rooms. 2. Search common areas and tub room before starting unit search. 3. Conduct a security check of each patient as outlined in OSH Policy and Procedure, 8.041, "Personal Searches." 4. Allow patients to be in common areas, activity rooms, or air court. 5. Follow Procedures A, "Room Search" to conduct each patient room search. 6. If there are any findings of concern, document the findings in the patient's medical record. 7. Return found items to unit HCP. Follow OSH Policy and Procedure 8.044, "Contraband and Prohibited Items" when handling prohibited items.

Responsible Person/Group	Procedures
HCP	When a treatment mall search is deemed necessary in accordance with OSH Policy 8.014: 1. Request authorization from the treatment mall manager for a treatment mall search. Provide the following information to the treatment mall manager: a. reasonable cause to suspect the presence of contraband, prohibited items, b. missing items that pose risk, or c. the security or safety risk that poses a danger to patients or others. 2. If there is reason to believe a patient may have a missing item, consider requesting a security check for each patient who could have accessed the item. Follow OSH Policy and Procedures 8.041, "Personal Searches."
Treatment mall HCP	1. After receiving authorization for an unannounced search, notify the Safety and Security Department. 2. Coordinate a search plan with the on-shift Security manager to determine: a. area requiring search, b. the missing items or equipment, and c. identify patients who may have accessed a missing item. 3. Begin the search when patients are not present on the treatment mall unless there is reasonable cause to believe an item missed during the staff's inventory check was accounted for before the treatment mall was started. 4. Be present to assist with Security during the search. 5. Designate a HCP to lock rooms. 6. If deemed necessary, conduct a security check of each patient who may have been involved in the incident as outlined in OSH Policy & Procedure, 8.041, "Personal Searches". 7. Document the outcome of the search and any findings of concern in the relevant patient's medical record. 8. Return found items to treatment mall HCP. Follow OSH Policy and Procedure 8.044, "Contraband and Prohibited Items" when handling prohibited items.

Treatment mall manager	1. Review search request. 2. Authorize search if deemed necessary. 3. Review search results.
Security Director or Manager	1. Arrange scheduled searches by: a. developing a search schedule, b. coordinating Security staff, and c. notifying the treatment mall manager prior to the search. 2. Develop plan with HCP and the treatment mall manager about scope of search, search plan, and possible risks. 3. Assign or lead a Security team to assist with the search. 4. Document search results. 5. Provide a written report and risk assessment to the treatment mall manager. 6. Review and assist with documentation of chain of custody, evidence handling, and incident reports from Security staff. 7. If contraband or prohibited items are found, follow OSH Policies and Procedures 8.019, "Staff Response to Alleged Criminal Acts and Contraband"; 8.037, "Patient Property and Valuables: Handling and Storage"; 8.044, "Contraband and Prohibited Items"; and Oregon Administrative Rule (OAR) 309-108-0015.
Security staff	1. Complete search according to established plan. 2. Complete incident reports as necessary.
MHST or HCP	1. If needed, conduct a security check of the patient as outlined in OSH Policy & Procedure, 8.041, "Personal Searches." 2. Return patients back to the unit. 3. If needed, assist treatment mall HCP with search. 4. Document the treatment mall search in an incident report.